

Ajmal v. State of U.P. & 2 Ors.

Allahabad High Court · Division Bench · 3 February 2015 · Criminal Misc. Writ Petition No. 2714 of 2015 · **Writ petition disposed of (FIR not quashed; arrest to follow s.41 CrPC safeguards)**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed; but as the offence does not entail imprisonment beyond seven years, any arrest must comply with the safeguards of Section 41(1)(b) read with Section 41-A of the Cr.P.C. The offence being compoundable, the accused may pursue compounding as provided under the U.P. Electricity Supply Code, 2005. The judgment's substantive holding is procedural/criminal; its contribution to Supply Code jurisprudence is limited to noting the Code as the route for compounding.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::compounding

Theft (s.135) compounded through the Supply Code — theft/UUE-Code linkage

HOLDING

The offence of electricity theft under Section 135 being compoundable, the accused's compounding remedy lies 'as provided under the provisions of the Electricity Supply Code, 2005' — the Code furnishing the machinery through which theft (Section 135) and, cognately, unauthorised use of electricity (Section 126) are assessed and compounded. Pending compounding, as the offence does not entail imprisonment beyond seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A Cr.P.C.; the FIR, disclosing a cognizable offence, was not quashed.

¶ para 5-6 (unnumbered order)

FLAG Scope: the case's express Code engagement is the compounding remedy; the operative relief concerned arrest safeguards (s.41(1)(b)/41-A Cr.P.C.). Retained as a node in the theft / unauthorised-use line, which the Supply Code's assessment and compounding machinery governs.

PRINCIPLE TAGS

theft-uue-enforced-via-code A compoundable Section 135 theft offence is to be compounded under the Electricity Supply Code, 2005 procedure; the Code supplies the enforcement / compounding machinery for theft (and, cognately, unauthorised use under Section 126). ¶ para 5-6 (unnumbered order)